THURSDAY
March 16, 2006

Oakland Tribune

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GEARING UP FOR NASCAR'S NEXTEL CUP
Man would be first African-American in top race since 1987 **SPORTS**

DELAYED GRATIFICATION
PS3 will not be released until November **BUSINESS Inside Sports**

DRAWING INSPIRATION
Graphic novels provide fodder for films **LIVING**

Perata probe invades City Hall

■ Senator's aide says 'informal' FBI visits with council members serve no purpose

By Heather MacDonald and Josh Richman
STAFF WRITERS

OAKLAND — FBI agents have descended on Oakland City Hall to interview at least two council members in the wide-ranging investigation of state Senate President Pro Tem Don Perata.

The interviews — which began Monday — lasted about 30 to 40 minutes each and focused on whether Perata used his influence to steer city contracts to firms affiliated with his friends and relatives, several council members said.

Councilmember Larry Reid (Elmhurst-East Oakland) said agents asked him Monday about his dealings with a number of firms and people connected to the Oakland Democrat, including Perata's son, Nick; Timothy Staples, a longtime Perata friend and business partner; and lobbyist Lily Hu, a former Perata aide.

"They wanted to know whether Perata ever called to ask for a vote, and what (Hu) asked for," Reid said, adding that Perata had never called him seeking a vote.

Although the agents told the council members they were not a subject of the investigation, several were

Please see **PERATA**, News 9

PERATA
Spokesman: Probe going nowhere.

UC chief sells cures in scandal

■ Regents hear from president on new policies to provide transparency in executive compensation

By Michelle Maitre
STAFF WRITER

Hounded by a compensation scandal, University of California President Robert Dynes on Wednesday reiterated his vow to tighten university rules and introduced two new policies to improve oversight of executive spending.

"We take these issues very seriously, and we're very intent on fixing the problem and tightening up the system so that the things that have happened do not happen again," Dynes said in his introductory comments at UC's Board of Regents meeting at UCLA.

UC's compensation policies have been under fire since newspaper reports detailed large spending on bonuses, allowances, sabbatical agreements and other perks, much of it granted without approval by regents.

Dynes has said UC pay lags behind that at other institutions, and the university needs to offer top dollar to attract the best candidates, but he acknowledged the university could be more open. The new policies announced Wednesday are part of UC's continuing attempts to revise its pay practices.

"We're very intent on fixing the problem and tightening up the system so that the things that have happened do not happen again."

Robert Dynes
UC PRESIDENT

The first requires that any construction improvements worth more than $25,000 to UC chancellors' on-campus residences or offices be approved by the president, effective immediately. Improvements to the president's residence, Blake House in Kensington, would be approved by the regents, pending ratification by the board in May.

The change follows media reports that UC spent thousands

Please see **UC**, News 9

ANALYSIS

Iraqis see strife worsening

MOHAMMED HAMEED — Associated Press

AN IRAQI MAN cries as the body of a relative killed in a bomb explosion Wednesday arrives at a hospital in Baqouba. Three explosions, one of them caused by a suicide bomber on a bicycle, killed at least four people and injured 20 north of Baghdad, police said.

Experts say violent 'civil war' transcends labels

By Charles J. Hanley
ASSOCIATED PRESS

BAGHDAD, Iraq — Deep within the Pentagon, they're trying to piece together a picture of an Iraqi civil war. What would it look like? Donald Rumsfeld asks.

Here on the streets of Baghdad, it looks like hell.

Corpses, coldly executed, are turning up by the minibus-load. Mortar shells are casually lobbed into rival neighborhoods. Car bombs are killing people wholesale, while assassins hunt them down one by one.

Is it civil war? "In Iraq it is no longer a matter of definition — 'civil war' or 'war' or 'violence' or 'terrorism.' It is all of the above," said one familiar with all of the above, Beirut scholar-politician Farid Khazen, a witness to Lebanon's 1975-1990 civil war.

Phebe Marr, a historian of Iraq, hesitates to put a name to what's happening today, a chaotic mix of anti-U.S. resistance, Sunni-Shiite communal bloodshed, Islamic-extremist terrorism.

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"But it's civil strife," the Washington-based Marr said, "and it's getting extremely serious."

It's only a term from a dictionary, defined as a war between opposing groups of citizens of the same country. But once media headlines begin referring to the "Iraq civil war," it will mark not only an escalation of vocabulary, but of international concern.

Some aren't ready for the label.

"It's not a state of civil war yet, but we're on the verge of it," said Baghdad political writer Jabir al-Jabari.

"Iraq is in the first steps toward civil war," agreed Bassem al-Sheik, editor in chief of Baghdad's al-Dustor newspaper.

Rumsfeld said in Washington on Tuesday he doesn't believe a civil war has begun here, but intelligence analysts are "trying to look for a way to characterize

Please see **IRAQ**, News 9

Three charged in invasion killing

■ Oakland woman says faith helped her through tragedy of son's 2004 death as she dialed 9-1-1

By Harry Harris
STAFF WRITER

OAKLAND — The most fortifying event imaginable changed Gery Gilbert's life forever on Nov. 13, 2004.

While she frantically called 9-1-1 from her East Oakland home, her 28-year-old son, Daman Daniels, was shot to death by robbers in an adjacent bedroom. The gunfire could be heard by the 9-1-1 operator.

Gilbert was not hurt, but part of her died with her son.

Yet the deeply religious Gilbert, a longtime secretary at the Oakland Police Department — including several years in the homicide unit in the 1990s — never lost faith in God or her belief her son's killers would be caught.

DANIELS

Her hopes were realized Monday when charges were filed in the killing against three Oakland men. All three have prior criminal records.

Half-brothers Varron Armstrong Jr., 27, and Gregory Peters, 29, and Dewayne Washington, 28, were charged with special circumstance murder. If convicted, they could face the

Please see **ARREST**, News 9

Eleventh-hour talks fail for June bond measure

By Steve Lawrence
ASSOCIATED PRESS

SACRAMENTO — A frenetic last-minute attempt to place a massive public works bond on the June ballot failed late Wednesday, handing Gov. Arnold Schwarzenegger a key legislative defeat in his bid for re-election.

The collapse of negotiations over the bond measure came just hours before an administrative deadline to place measures on the primary election ballot.

"We ran out of time," Senate President Pro Tem Don Perata said, after the Senate passed an urgency bill appropriating $1 billion for levee repairs from the state's reserve fund.

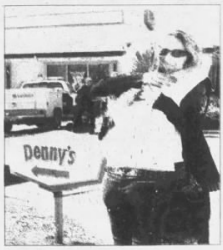
A partial deal had appeared possible just hours earlier after legislative leaders from both parties emerged from Schwarzenegger's office. Whatever agreement might have been struck behind close doors crumbled shortly afterward.

"While we are disappointed we did not make the June ballot, everyone knew it would be very difficult," Schwarzenegger spokeswoman Margita Thompson said in a statement. "The governor has always said what is important is not June or No-

Please see **BOND**, News 9

Shooting at diner

A man opened fire inside a Denny's in Pismo Beach during lunch hour Wednesday, killing two people and wounding two before taking his own life. **News 4**



JOE JOHNSTON — The (San Luis Obispo) Tribune

INSIDE

Lottery ..... News 2
Movies ..... Living 4
Obituaries ..... Metro 7
Opinion ..... Metro 8
Legals ..... Class 3
Wonderword ..... Class 6
Business ..... Inside Sports

Forecast

Rain
Highs: upper 50s
Lows: upper 40s

Details on **Living 8**